

24STCV22479 24STCV22479

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-17

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Case Number: 24STCV22479 Hearing Date: July 17, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

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AIKEILA JACOBS

;

Plaintiff,

vs.

VENTRA HEALTH, INC.

, et al.;

Defendants.

Case

No.:

24STCV22479

Hearing

Date:

July
17, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

plaintiff's motion for approval of paga
settlement

MOVING PARTIES: Plaintiff Aikeila Jacobs

RESPONDING PARTY: Unopposed

Motion for Approval of PAGA Settlement

The court
considered the moving papers filed in connection with this motion. No opposition papers were filed.

DISCUSSION

Plaintiff Aikeila Jacobs ("Plaintiff") moves the court for an order approving the Labor Code Private Attorneys General Act of 2004 (Labor Code, § 2698, et seq.) ("PAGA") settlement agreement between Plaintiff and Defendant Ventra Health, Inc. ("Defendant").

The parties have reached a gross settlement of \$100,000. (Messrelian Decl., Ex. 1, Settlement Agreement, ¶ 1.11.)

Labor Code section 2699, subdivision (s)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action pursuant to" PAGA. The court's review of PAGA settlements "ensur[es] that any negotiated resolution is fair to those affected." (Williams v. Superior Court (2017) 3 Cal.5th 531, 549.) In an effort to aid the court in the determination of the fairness of the settlement, Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 244-245 (disapproved on other grounds), discusses

factors that the court should consider when determining the reasonableness of a settlement agreement.” “[A] presumption of fairness exists where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (Id. at p. 245.) “[T]he test is not the maximum amount plaintiffs might have obtained at trial on the complaint, but rather whether the settlement is reasonable under all of the circumstances.” (Id. at p. 250.)

The court has reviewed (1) the terms of the Settlement Agreement, including (i) the gross settlement amount of \$100,000, attorney’s fees in the amount of 1/3 of the gross settlement amount (\$33,333.33), legal costs in the amount of \$14,791.69, and administrator costs in the amount of \$3,490.00, (ii) the net settlement amount of \$48,384.98, of which 75 percent (or \$36,288.74) will be paid to the Labor and Workforce Development Agency, and of which the remaining 25 percent (or \$12,096.24) will be paid to the PAGA Members, and (iii) the release of claims by the aggrieved employees and (2) the declaration of Plaintiff’s counsel, in which counsel states that (i) the parties exchanged informal discovery prior to mediation, (ii) the parties participated in a full-day, arm’s-length mediation, (iii) Defendant’s maximum exposure for meal period violations would be \$108,800, and Plaintiff’s meal period claims contain risks because it would be difficult for Plaintiff to show the exact reasons why a meal period appears to be short or late or not taken and Defendant maintained legally compliant meal period policies, such that Plaintiff’s counsel believes that the \$100,000 settlement is a substantial, fair, and reasonable recovery, (iv) Defendant’s realistic exposure for rest period violations would be \$144,840 and Plaintiff’s rest break violations are difficult to prove because they are not tracked on paper and Defendant maintained legally compliant rest period policies for a maximum exposure of \$253,640, and (v) there are substantial issues with proving Plaintiff’s other claims. (Messrelian Decl., ¶¶ 9, 14, 15, 16, 23; Ex. 1, ¶¶ 1.11, 1.27, 4.2.)

The court also considered Plaintiffs’ counsel’s declaration to determine the reasonableness of the request for attorney’s fees in the amount of \$33,333.33 and finds that the award of attorney’s fees in that amount is reasonable under the percentage approach. (Messrelian Decl., ¶¶ 25-26.) (*Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 503-504 [“The choice of a fee calculation method is generally

one within the discretion of the trial court, the goal under either the percentage or lodestar approach being the award of a reasonable fee to compensate counsel for their efforts”).)

The court further finds that the requests for legal costs of \$14,791.69, with the excess of \$15,000 allocated to the Net PAGA Settlement Amount, and administrator estimated expenses of \$3,490.00, with the excess allocated to the Net PAGA Settlement Amount, are reasonable.

(Messrelian Decl., ¶¶ 23, 27; Ex. 1 ¶¶ 4.2.1, 4.2.2; Ex. 2 [Apex's bid for \$3,490.00].)

Based on the arguments and evidence set forth in Plaintiff's motion, the court finds that the settlement agreement is fair, adequate, and reasonable. (Wershba, supra, 91 Cal.App.3d at pp. 244-245.) The court therefore grants Plaintiffs' motion.

ORDER

The court grants plaintiff Aikeila Jacobs's motion for approval of PAGA settlement.

The court will sign and file the [Proposed] Order on Unopposed Motion for Approval of PAGA Settlement which was lodged with the court on April 1, 2026.

The court orders plaintiff Aikeila Jacobs to lodge with a court and serve a proposed judgment that is consistent with the terms of the PAGA Settlement Agreement.

The court sets an Order to Show Cause re: Entry of Judgment for hearing on November 3, 2023 at 8:30 a.m.

The court orders that the Final Status Conference, scheduled for April 28, 2026 at 8:30 a.m. in Department 513, is vacated.

The court orders that trial, scheduled for September 9, 2026 at 11:00 a.m. in Department 513, is vacated.

The court orders plaintiff Aikeila Jacobs to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 17, 2026

Robert

B. Broadbelt III

Judge

of the Superior Court